

said the whole affair was a “sanctimonious fraud” and a “high-grade lynching party.”

Despite the criticism, later there was a widespread belief that the trials had achieved something of great importance. They had formally recorded many of the crimes of the Nazi regime. Moreover, they left nobody in any doubt over who was responsible for starting the war. Crucially, though, the Nuremberg trials reestablished the importance of the rule of law and set a precedent for dealing with disputes by legal means rather than resorting to arms. They were part of the determination, along with the creation of the United Nations, to build a future world that would be governed by international agreement rather than warfare.

The legacy

Robert H. Jackson, the leading judge at the Nuremberg trials, argued that it was not the fate of the individual Nazi leaders that was important but the affirmation of law as the final arbiter. In 1948, the Genocide Convention outlawed genocide, and the Universal Declaration of Human Rights was adopted by the United

Nations. The Geneva Conventions, updating earlier standards for humanitarian treatment in war, followed in 1949.

Calls for the creation of an International Criminal Court to follow up on the Nuremberg trials were dogged by disagreement. It was finally established in The Hague, the Netherlands, in 2002, but without the agreement of several nations, including the United States, China, Iraq, India, Israel, Libya, Qatar, and Yemen. To date, the Hague court has tried and convicted eight individuals, as well as having acquitted four.

The Hague was also the location for the International Criminal Tribunal for the former Yugoslavia (ICTY), set up by the UN in 1993 to prosecute the serious war crimes that had been committed during the Yugoslav wars. The tribunal convicted more than 80 people, including former Serbian president Slobodan Milošević; Radovan Karadžić, former president of the Republika Srpska; and Bosnian Serb commander Ratko Mladić.

The legal principles set in motion at the Nuremberg trials have failed to protect people

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[An] international Magna Carta for all mankind.

Eleanor Roosevelt

Chair of the Universal Declaration of Human Rights' drafting committee (1884–1962)

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against terrible war crimes and genocide, and there are many horrors that have gone unpunished or unrecorded. It also seems unlikely that the major powers will ever allow themselves to come under the scrutiny of such international courts and tribunals for their own crimes. And yet the principle of finding an international legal solution for the punishment of war criminals seems firmly in place, with the three categories of crimes set up for Nuremberg—crimes against peace, war crimes, and crimes against humanity—central to the pursuit of justice. ■



Peter von Hagenbach

The first commanding officer to be convicted of war crimes was the Burgundian knight Peter von Hagenbach. Born c. 1420, von Hagenbach was the bailiff for the Upper Alsace region on what is now the French–German border. Between 1469 and 1474, he led an uprising with such brutality that a tribunal of 28 judges from across the Holy Roman Empire was called to try him for crimes including murder and rape. He defended himself by saying he was acting on the orders

of Charles the Bold, Duke of Burgundy—the first but by no means the last time the defense of acting under orders has been used by war criminals.

This defense was rejected, and von Hagenbach was beheaded in 1474 after being convicted of murder, rape, and perjury. Some modern scholars suggest it may have been just a show trial to discredit Charles the Bold, but there seems to be little doubt that von Hagenbach did conduct a reign of terror.